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County: los-angeles

Division: Civil Law and Motion

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Case Number: 24TRCV04415 Hearing Date: August 21, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department
5

JOSEPH DEFRANCO, JR.

;

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO.,
INC.

;

Defendant.

Case
No.:

24TRCV04415

Hearing

Date:

August
21, 2026

Time:

8:30 a.m.

[tentative]
Order RE:

(1)
DEFENDANt
american honda motor co., inc.'s motion for an undertaking

MOVING PARTY: Defendant, American Honda Motor.
Co., Inc.

RESPONDING
PARTY: Plaintiff, Joseph Defranco,
Jr.

(1)
Defendant
American Honda Motor. Co., Inc.'s Motion for an Undertaking is GRANTED in the reduced amount of $14,853.00 pursuant to Code of Civil Procedure section 1030.

The Court considers the moving papers filed on April 23, 2026, the opposition brief filed on July 10, 2026, and the reply brief filed on July 16, 2026.

BACKGROUND

Factual Background

On December 27, 2024, plaintiff Joseph Defranco, Jr. ("Plaintiff") filed the Complaint against defendants American Honda Motor. Co., Inc. ("Defendant") and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of Subdivision

(d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of Express Written Warranty – Civ. Code, §§ 1791.2, Subd. (a), 1794; (5) Breach of the Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794); (6) Violation of the Magnuson-Moss Warranty Act; (7) Violation of Automotive Repair Act; and (8) Violation of Business and Professions Code § 17200.

LEGAL STANDARD

In an action or special proceeding brought by a nonresident plaintiff, the defendant may at any time move for an order requiring the plaintiff to post security. (Code Civ. Proc., § 1030, subd. (a).) The stated grounds for the motion are that the plaintiff resides out of state or is a foreign corporation, and there is a reasonable possibility that the moving defendant will obtain a favorable judgment. (Code Civ. Proc., § 1030, subd. (b).) The motion can be brought at any time. (Code Civ. Proc., § 1030, subd. (a).) The motion is required to be noticed. (Code Civ. Proc., § 1030, subd. (a).) The notice of motion must be served in accordance with Code of Civil Procedure section 1005, subdivision (b). The motion must be accompanied by a supporting affidavit or declaration that establishes the stated grounds for the motion and sets forth the nature and amount of the costs and attorney fees the defendant has incurred and expects to incur until the action is concluded. (Code Civ. Proc., § 1030, subd. (b).) A memorandum of points and authorities must also accompany it. (Code Civ. Proc., § 1030, subd. (b); Cal. Rules of Court, rule 313(a).)

The plaintiff may pursue a number of tactics in opposing a motion for security. These may include:

(1) proof that the plaintiff is not a nonresident;

(2) showing the plaintiff’s indigency (Code Civ. Proc., §995.240); and

(3) arguing the defendant’s failure to make an adequate prima facie showing of a reasonable possibility of success in the action.

In cases where adequate grounds exist for granting the motion for security, the plaintiff can still challenge the amount of the costs and attorney fees requested by the defendant. The security can be ordered only for “reasonable” costs and attorney fees, and the defendant must be otherwise entitled to recover those fees by contract or by another statutory provision. (Code Civ. Proc., §1030, subd. (a).)

If the motion is granted, the plaintiff shall file the undertaking no later than 30 days after service of the court’s order requiring it, and if plaintiff fails to file the undertaking within the time allowed, the plaintiff’s action shall be dismissed as to the moving defendant. (Code Civ. Proc., § 1030, subd. (d).)

DISCUSSION

Defendant moves this Court for an undertaking in the amount of $19,603.00, asserting that Plaintiff is a resident of New Jersey and that there is a reasonable possibility of Defendant securing a favorable judgment in this matter. (Motion, pp. 4:2-10:19; Declaration of Jordan R. Fisher (“Fisher Decl.”), ¶ 3, Exh. C.) Plaintiff’s residency is not disputed. Consequently, the Court will concentrate on the argument concerning the reasonable possibility of success.

Possibility of Obtaining a Favorable Judgment

“The motion shall be made on the grounds that the plaintiff resides out of the state or is a foreign corporation and that there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding.” (Code Civ. Proc., § 1030, subd. (b).) The Court finds that Defendant demonstrates that there is a reasonable possibility that it will achieve a favorable judgment in the action or special proceeding.

First to Fifth Causes of Action – Song-Beverly Consumer Warranty Act Claims

“[T]he structure and language of the existing statutory provisions indicate that the Legislature intended the

Act to apply only to vehicles sold in California.” (Cummins, Inc. v. Superior Court (2005) 36 Cal.4th 478, 493.)

Defendant submits evidence demonstrating that Plaintiff purchased the vehicle in Denville, New Jersey, from Joyce Motors Corp., doing business as Joyce Honda (“Joyce Honda”). (Motion, p. 8:17-18; Declaration of Larry Swanson (“Swanson Decl.”), ¶¶ 2-6.) Larry Swanson, who serves as the Vice President and General Manager of Joyce Honda, asserts that Plaintiff purchased the vehicle on February 19, 2022. (Swanson Decl., ¶¶ 2, 4-5.) Plaintiff entered into a “motor vehicle retail order” contract with Joyce Honda to finance the vehicle’s purchase and subsequently took possession of the vehicle from the dealership. (Swanson Decl., ¶¶ 5-6.) Consequently, Plaintiff is precluded from bringing Song-Beverly claims against Defendant, and Defendant has established a reasonable possibility of prevailing on these claims.

In an attempt to counter this conclusion, Plaintiff contends, “Defendant Honda is headquartered right here in Los Angeles County. See Declaration of Michael Devlin at ¶ 3, Ex. 1. Thus, the Subject Vehicle was manufactured and/or distributed in this state. It could be even be argued that given that Defendant Honda’s Sales Headquarters is unquestionably here in Los Angeles County that the vehicle’s initial sale was in this state. Defendant manufacturers certainly now point to the ‘initial delivery date’ as the date when they as a manufacturer initially sold a vehicle to a dealership for the purposes of starting the clock on the recently changed more limited statute of limitations in Song-Beverly Consumer Warranty cases; they should not be able to have it both ways and then say that’s not what they mean when such initial sale doesn’t suit their liking and the shoe is on the other foot.” (Opp., p. 2:10-18.) The Court finds these arguments unpersuasive.

The Court first notes that the pertinent inquiry is not whether the subject vehicle was manufactured or distributed in California, but rather whether it was sold in California. The evidence conclusively demonstrates that it was not sold in California. Furthermore, the mere fact that Honda’s headquarters is situated in Los Angeles County does not imply that the subject vehicle was manufactured or distributed in California. Plaintiff has not presented a legal analysis or any evidence to support this assertion.

Additionally, the Court finds Plaintiff's argument concerning the "the initial delivery date" equally unpersuasive. Plaintiff fails to provide relevant case law to substantiate their claims and does not clarify why the unknown cases should be interpreted to suggest that a vehicle sold in New Jersey was initially sold in California.

Sixth Cause of Action - Violation of the Magnuson-Moss Warranty Act

"The Magnuson-Moss Warranty—Federal Trade Commission Improvement Act (Magnuson–Moss), 15 U.S.C. sections 2301 et seq., authorizes a civil suit by a consumer to enforce the terms of an implied or express warranty. Magnuson–Moss 'calls for the application of state written and implied warranty law, not the creation of additional federal law,' except in specific instances in which it expressly prescribes a regulating rule. (Walsh v. Ford Motor Co. (D.C.Cir.1986) 807 F.2d 1000, 1012 (Walsh II).) Accordingly, the trial court correctly concluded that failure to state a warranty claim under state law necessarily constituted a failure to state a claim under Magnuson–Moss." (Daughtery v. American Honda Motor Co. Inc. (2006) 144 Cal.App.4th 824, 832-833.)

Given that Plaintiff's state law warranty claims are unsuccessful, Plaintiff's cause of action under the Magnuson-Moss Warranty Act likewise fails. Consequently, Plaintiff is precluded from bringing Magnuson-Moss claims against Defendant, and Defendant has established a reasonable possibility of prevailing on this claim.

Seventh Cause of Action - Violation of Automotive Repair Act

"The director, if the automotive repair dealer cannot show there was a bona fide error, may deny, suspend, revoke, or place on probation the registration of an automotive repair dealer for any of the following acts or omissions related to the conduct of the business of the automotive repair dealer, which are done by the automotive repair dealer or any automotive technician, employee, partner, officer, or member of the automotive repair dealer: … ¶

(2) Causing or allowing a customer to sign any work order that does not state the repairs requested by the customer or the automobile's odometer reading at the time of repair." (Bus. & Prof. Code, § 9884.7, subd. (a)(2).)

The term "director" refers specifically to "the Director of Consumer Affairs." (Bus. & Prof. Code, § 9880.1, subd. (g).) Furthermore, "[e]very power granted to or duty imposed upon the director under this chapter may be exercised or performed in the name of the director by a deputy or assistant director or by the chief, subject to such conditions and limitations as the director may prescribe." (Bus. & Prof. Code, § 9880.1, subd. (g).) Consequently, only the Director of Consumer Affairs, a deputy, assistant director, or chief may pursue violations of Business and Professions Code section 9884.7, subdivision (a)(2).

Plaintiff asserts that they are bringing a claim under Business and Professions Code section 9884.7, subdivision (a)(2). (Compl., ¶ 44.) However, Plaintiff lacks the requisite authority to do so, as they do not assert being the Director of Consumer Affairs, a deputy, assistant director, or chief. Consequently, Plaintiff is precluded from bringing this claim against Defendant, and Defendant has established a reasonable possibility of prevailing on this claim.

Eighth Cause of Action - Violation of Business and Professions Code § 17200

"[P]laintiffs who are not California residents must also allege facts to show that the alleged violations occurred within California, because California's unfair competition law does not apply extraterritorially." (Aghaji v. Bank of America, N.A. (2016) 247 Cal.App.4th 1110, 1119.)

As previously discussed, Plaintiff is a resident of New Jersey and purchased the vehicle in that state. Additionally, Plaintiff's evidence indicates that the vehicle was taken to Joyce Honda for repairs on multiple occasions. (Declaration of Michael Devlin, Exh. C.) None of the facts presented substantiate that the alleged violations occurred in California. Consequently, Plaintiff is precluded from bringing this claim against Defendant, and Defendant has established a reasonable possibility of prevailing on this claim.

Accordingly, Defendant demonstrates that there is a reasonable possibility that it will achieve a favorable judgment in the action or special proceeding.

Anticipated Costs

As stated, a motion for an undertaking must include an affidavit that sets “forth the nature and amount of the costs and attorney’s fees the defendant has incurred and expects to incur by the conclusion of the action.” (Code Civ. Proc., § 1030, subd. (b).)

Defendant estimates the following costs: (1) $8,578.00 related to the in-person depositions of Plaintiff and the person most knowledgeable from Joyce Honda, which encompasses $1,489.00 for a round-trip airline flight and the expenses associated with two nights of lodging; (2) $3,820.00 attributed to court reporter fees based on the statutory daily rate of $764.00; (3) a minimum of $1,205.00 for filing and motion fees, which include the previously incurred first appearance and jury fees; and (4) $1,250.00 for the preparation of trial exhibits and displays for the jury trial. (Fisher Decl., ¶¶ 4-8, Exh. D.) These estimates result in a total of $14,853.00.

Based on the Court's experience, these rates are deemed reasonable. Consequently, the Court concludes that an undertaking of $14,853.00 is appropriate.

Furthermore, the Court observes that the missing $4,750.00 appears to be associated with an expert, Eduardo Willis. (Fisher Decl., Exh. D, p. 3.) However, Defendant fails to elaborate on this proposed cost. Therefore, the Court does not consider it reasonable or appropriate to include this amount as part of the undertaking.

Entitlement to Relief

“The party seeking relief from the requirement for a bond or undertaking has the burden of proof to show entitlement to relief. [Citation.]” (Cardinal Care Management, LLC v. Afable (2020) 47 Cal.App.5th 1011, 1019, internal citation omitted.) “In considering whether to waive an undertaking, the court considers ‘all factors it deems relevant, including but not limited to the character of the action or proceeding, the nature of the beneficiary, whether public or private, and the potential harm to the beneficiary if the provision for the bond is waived.' (Code Civ. Proc., § 995.240, italics added.)" (Id. at p. 1020.)

Plaintiff asserts, "I am not in the financial position to pay a $19,603.00 bond in pursuit of my statutory rights. The requested bond would be a financial hardship for me." (Declaration of Plaintiff, ¶ 7.) However, Plaintiff fails to provide supporting information that would clarify how this situation constitutes a financial hardship. As a result, the Court finds this argument unconvincing due to the absence of evidentiary support.

In their opposition brief, Plaintiff contends that these claims are designed to protect consumers and that granting the motion "would effectively be going against the desired stated interpretation and construction of the remedial nature of the statutes in question in this Action." (Opp., p. 4:20-21.) The Court finds this additional argument unpersuasive, as none of these claims appear to be available to Plaintiff.

Accordingly, the Court GRANTS Defendant's motion for an undertaking in the reduced amount of $14,853.00.

ORDERS

1) Defendant American Honda Motor. Co., Inc.'s Motion for an Undertaking is GRANTED in the reduced amount of $14,853.00.

2) Plaintiff is ordered to post a bond of $14,853.00 with the Court on or before September 18, 2026.

3) Defendant is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 21, 2026

____

Tamara
Hall

Judge
of the Superior Court